LEGAL ANALYSIS: NEW PROPOSED LEASE CONTRACT

Analysis of the Contract Presented at the March 3, 2026 Signing Appointment

Date: March 4, 2026 **Subject:** Clause-by-clause analysis of the new proposed lease contract for the property at "Casa B," Villas Morelos, Puerto Morelos, Q.R. **Source Law:** Civil Code for the State of Quintana Roo (Last Reform POE 31-05-2023) and Código Civil Federal (Last Reform DOF 14-11-2025) **Status:** Contract was NOT signed — tenants walked away after the bait-and-switch on rent

> **LEGAL NOTICE:** This report is a legal analysis tool, not legal advice. Consult a licensed civil attorney in Quintana Roo for formal representation.

TABLE OF CONTENTS

1. Executive Summary — Your Rights Under the Law
2. The Rent Increases Exposed
3. How Predatory Is This Contract?
4. What the Law Gives You (Regardless of Any Contract)
5. The Landlord's Weapons Are Blanks
6. Clause-by-Clause Analysis
7. The Language/Consent Problem
8. The Tacit Renewal Trap
9. The Promissory Notes Problem
10. Strategic Recommendations and Timeline
11. Side-by-Side: Current Status vs. New Contract
12. Federal & State Code Research: Verified Legal Provisions

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1. EXECUTIVE SUMMARY — YOUR RIGHTS UNDER THE LAW

Verdict: DO NOT SIGN

This contract is a predatory instrument designed to strip the tenant of virtually every protection afforded by the Quintana Roo Civil Code. It should not be signed under any circumstances. But more importantly: **the tenant is already protected by law, and no contract — past, present, or future — can take those protections away.**

What You Have RIGHT NOW (Without Signing Anything)

The Quintana Roo Civil Code gives you the following rights **by operation of law**. These rights exist regardless of what any contract says. They cannot be waived. They cannot be overridden by a contract clause. A judge will enforce them even if you signed something that says otherwise.

Your Right	Legal Basis	What It Means
Indefinite-term lease	Art. 2739 (tacit renewal)	You stayed after the prior lease expired. She accepted rent. The lease renewed automatically for an indefinite term at the original rent. She cannot end this without 2 months' notice (Art. 2714).
Landlord pays for all		The landlord MUST maintain the property in conditions suitable for use and make ALL

necessary repairs	Art. 2687 (mandatory)	necessary repairs. This is not optional. Art. 2698: “any stipulation to the contrary shall be null.”
You only pay for small repairs	Art. 2725	“Small repairs” — normal wear from daily use. Things like lightbulbs, faucet washers. NOT water heaters, roofs, plumbing, or AC systems.
Rent increases capped at 10%	Art. 2738	Even if she terminates and you request an extension, she can only raise rent by up to 10% — and she must PROVE area rents justify it.
1-year extension right	Art. 2738	If she gives notice, you can request a 1-year extension within 15 days. She must grant it if you’re current on rent.
Lease survives death	Art. 2683	The lease is NOT terminated by the death of either party. It continues with heirs.
Contract is potentially null	Art. 383(d)	The expression of will DOES NOT EXIST for persons who do not know the language of the contract. This is absolute nullity — imprescriptible, cannot be waived (Art. 388).
Exploitation of ignorance is null	Art. 24-26	Contracts that exploit ignorance, inexperience, or necessity for unjust advantage are NULL. This is imprescriptible and a matter of public order (Art. 23).
Usurious interest is void	Art. 2659	Interest rates disproportionately higher than the legal rate (12%/year) can be retroactively reduced by a judge, and the creditor can lose ALL interest.
No self-help eviction	General Mexican law	A landlord cannot evict you without a court order. Period. No contract clause can authorize it.
Reimbursement for repairs you made	Art. 2687, 2694	Every repair you paid for that was the landlord’s legal obligation = money she owes you.
Adhesion contract = interpreted against her	Art. 175	She drafted the Spanish-only contract. Every ambiguity is legally interpreted against her and in your favor.
Excessive penalties judicially reducible	Art. 291	The $27,000 stacking penalties are “manifestly excessive” — a judge WILL reduce them.
5-year preference right	Art. 2708	After 5+ years with improvements, you have priority for lease renewal AND right of first refusal if she sells.
Court-authorized repair deduction	Art. 2688	A judge can authorize you to make repairs yourself and deduct the cost directly from rent.
Habitability indemnification is non-waivable	Art. 2709	Even if you signed a waiver, the right to claim damages for uninhabitable conditions cannot be waived.
Compound interest is prohibited	Art. 2661	Any interest calculation that compounds unpaid interest is automatically null.

These rights exist today. They existed yesterday. They existed for all 5 years of your tenancy. The

predatory clauses in the prior contract were NEVER valid — you just didn't know it.

The Bottom Line

You are a tenant who: - Pays rent on time (with electronic proof) - Has made extensive repairs at your own cost (the landlord's legal obligation) - Has been exploited through Spanish-only contracts you cannot read - Is protected by mandatory law that no contract can override - Has an indefinite-term lease under tacit renewal - Has counterclaims for repair reimbursement - Has a language-barrier defense that renders all contracts potentially null

The landlord is a person who: - Presented a bait-and-switch rent increase ($12,500 communicated → $13,500 in contract) — **and her own voice note on signing day ADMITS it**: "I told him twelve thousand five hundred…but no, it's thirteen thousand five hundred…I made a mistake putting it in the chat" (sent 27 minutes before the signing, after 7 days of silence about the "error") - **Lied that the new contract is "the same" as prior years — it is NOT** (see whatsapp-evidence-analysis.md for the full comparison: 9 material differences found, ALL favoring the landlord, including a 67% increase in the already-usurious late interest rate from 6% to 10%/month, strengthened liability language from "good conditions" to "perfect working condition," and a fixed drafting ambiguity that previously could have been read in the tenant's favor) - Has never provided a copy of the signed contract - Claims ownership that may be false (or previously lied about it) - Broke WhatsApp promises (AC for 4 years, furniture removal) - Refuses to make legally required repairs (AC, roof, water pump, condensate drain — all documented in WhatsApp) - Wants you to sign promissory notes to create a fast-track debt weapon - Wants you to sign away all prior agreements and protections (Clause 15) - Refused tenant's request for a 2-year lease to maintain annual control and vulnerability

She has no leverage. You have all of it. And the numbers prove it: the rent has been raised 50% above the original amount over 5 years — far exceeding both inflation (~30.7% cumulative) and the Art. 2738 legal cap (10% per year with justification, which was never provided). The tenant has potentially overpaid between $28,740 and $72,000 MXN depending on the legal baseline used. This is not a tenant who owes — this is a tenant who is owed.

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2. THE RENT INCREASES EXPOSED — UNJUSTIFIED AND ABOVE LEGAL LIMITS

Year-by-Year Rent vs. Inflation vs. Legal Maximum

The original rent was **$9,000/month** (Year 1). The landlord has increased it every year without ever providing the justification required by Art. 2738 (demonstration that area rents have experienced increases that justify the increase).

Lease Year	Period	Monthly Rent	Increase	% Increase	Mexico Inflation (Annual)	Art. 2738 Max (10%)	Legal?
Year 1	Mar 2021 – Mar 2022	$9,000	—	—	—	—	Baseline
Year 2	Mar 2022 – Mar 2023	$10,000	+$1,000	**+11.1%**	5.69% (2021)	$9,900	**NO — exceeds 10% cap**
Year 3	Mar 2023 – Mar 2024	$11,000	+$1,000	**+10.0%**	7.90% (2022)	$11,000	Borderline — requires proof
Year 4	Mar 2024 – Mar	$12,000	+$1,000	**+9.1%**	5.53% (2023)	$12,100	Requires proof (not provided)

	2025						
Year 5 (NOT SIGNED)	Mar 2025 – Mar 2026	$12,500 → $13,500	+$500 → +$1,500	**+4.2% → +12.5%**	4.72% (2024)	$13,200	**NOT SIGNED — bait-and-switch; exceeds 10% cap**

Sources: Mexico national inflation from INEGI/Banco de Mexico and Trading Economics. Cancun-area housing data from Quintana Roo Hoy and The Latinvestor.

The Numbers Don't Lie

Metric	Value
Original rent (Year 1)	$9,000/month
Last signed rent (Year 4)	$12,000/month
Proposed rent (Year 5 — NOT SIGNED)	$12,500 → bait-and-switched to $13,500/month
Tacit renewal rent (conservative)	**$12,000/month**
Cumulative increase (Year 1 → Year 4)	**+$3,000 = +33.3%**
Cumulative increase (Year 1 → Proposed Year 5)	**+$4,500 = +50.0%**
Cumulative Mexico inflation (2021–2024)	**~26.3%**
Inflation-adjusted rent (Year 4)	~$11,363/month
Last signed rent exceeds inflation by	**$637/month ($12,000 vs $11,363)**
Proposed rent exceeds inflation by	**~$1,303/month ($13,500 vs ~$12,197)**

Cumulative Overpayment Analysis

Scenario 1: Nuclear option — If rent should have stayed at $9,000 (all contracts null under Art. 383(d))

If all subsequent contracts are absolutely null due to the language barrier, tacit renewal applied each year at the only validly agreed amount ($9,000):

Year	Paid (12 months)	Should Have Paid	Overpayment
Year 2	$120,000	$108,000	$12,000
Year 3	$132,000	$108,000	$24,000
Year 4	$144,000	$108,000	$36,000
Total	**$396,000**	**$324,000**	**$72,000**

Potential overpayment (nuclear option): $72,000 MXN (~$3,850 USD). This argument requires a court to declare all subsequent contracts null — a powerful but aggressive position.

Scenario 2: If rent had increased only by inflation

Year	Paid	Inflation-Adjusted Rent	Monthly Overpayment	Annual Overpayment
Year 2	$10,000	$9,512	$488	$5,856
Year 3	$11,000	$10,263	$737	$8,844
Year 4	$12,000	$10,830	$1,170	$14,040
Total				**$28,740**

Overpayment above inflation: $28,740 MXN (~$1,535 USD). This is the minimum demonstrable overpayment even under the most conservative analysis.

Scenario 3: Overpayment above the Art. 2738 legal maximum (10% cap)

Even accepting that the landlord COULD raise rent by 10% each year (the maximum, and only with proof she never provided), the amounts above the cap are money she collected illegally:

Year	Paid	Max Legal Rent (10% cap)	Legal Monthly Rent	Monthly Excess	Annual Excess
Year 2	$10,000	$9,000 + 10% = $9,900	$9,900	$100	**$1,200**
Year 3	$11,000	$9,900 + 10% = $10,890	$10,890	$110	**$1,320**
Year 4	$12,000	$10,890 + 10% = $11,979	$11,979	$21	**$252**
Total excess above legal maximum					**$2,772**

Important caveat: The 10% cap is NOT automatic. She must **demonstrate area rent increases justify it** (Art. 2738). She never provided any justification for any increase. Without justification, the legal increase is **zero** — which means the entire amount above the prior year's rent is excess. Under that reading:

Year	Paid	Legal Rent (no justification = no increase)	Monthly Excess	Annual Excess
Year 2	$10,000	$9,000	$1,000	**$12,000**
Year 3	$11,000	$9,000	$2,000	**$24,000**
Year 4	$12,000	$9,000	$3,000	**$36,000**
Total excess (no justification)				**$72,000**

The true amount owed falls somewhere in this range ($2,772 to $72,000) depending on whether a court views the increases as partially justified by market conditions (even without formal proof) or entirely unjustified. Either way, the landlord collected money above the legal limit and owes it back.

TOTAL: WHAT THE LANDLORD OWES THE TENANT

Adding up ALL counterclaims — rent excess, repairs, rent reduction, cable TV, and damages:

A. Rent Overpayment (Art. 2738 violations)

Claim	Conservative	Aggressive (Art. 383(d))
Excess rent above legal limits	$2,772	$72,000

B. Repair Reimbursement (Art. 2687, 2688, 2694)

All repairs below were the landlord's legal obligation under Art. 2687. The tenant paid for them. Amounts marked **[TO BE FILLED]** require the tenant to insert actual costs from receipts.

#	Repair	Estimated Cost (MXN)	Notes
1	Roof leak — materials + labor (tenant did work while injured)	**[TO BE FILLED]**	Extensive — removed all old coating, applied new material
2	Water heater — first repair	**[TO BE FILLED]**	Now broken again
3	Water pump switch — replacement	**[TO BE FILLED]**	
4	Two sink faucets — replaced	**[TO BE FILLED]**	

5	Bathroom sink — removal/repositioning (silicone-glued to countertop)	**[TO BE FILLED]**	Had to fully remove to access faucet
6	Tinaco (water tank) — cleaning and repair	**[TO BE FILLED]**	
7	Floor repair	**[TO BE FILLED]**	
8	Metal bed frame — weld repair (guest room)	**[TO BE FILLED]**	Tenant did not cause damage
	SUBTOTAL — Repairs	**$[SUM]**	

C. Rent Reduction — 3 Months Without Air Conditioning (Art. 2698, 2707)

The AC replacement took 3 months in the tropical heat of Cancun. Art. 2707 entitles the tenant to a proportional rent reduction for partial loss of use. Art. 2698 makes this right **non-waivable**.

A 30-50% reduction is reasonable for a dwelling in tropical Cancun without climate control:

Months	Monthly Rent at Time	Reduction (30-50%)	Amount Owed
3 months	~$10,000-$11,000 (est.)	30% = $3,000-$3,300/mo	**$9,000–$9,900**
3 months	~$10,000-$11,000 (est.)	50% = $5,000-$5,500/mo	**$15,000–$16,500**

Estimated range: $9,000–$16,500 MXN

D. Cable TV/Internet Overpayment (Unjust Enrichment)

Service in the landlord's father's name. Tenant has been paying for years for a service they didn't choose, can't cancel, and can't control.

Item	Amount
Monthly cable/internet cost	**[TO BE FILLED]** per month
Number of months paid	**[TO BE FILLED]** months
SUBTOTAL — Cable TV	**$[MONTHLY × MONTHS]**

E. Pending Repairs Still Needed (Art. 2687 — Landlord's Obligation)

These are not reimbursements — these are repairs the landlord is legally required to make NOW:

#	Repair Needed	Estimated Cost
1	Water heater — broken again (needs replacement)	**[TO BE FILLED]**
2	Toilet — barely flushes (persistent plumbing)	**[TO BE FILLED]**
3	Shower drain — slow/blocked	**[TO BE FILLED]**
4	Unwanted bed — removal (promised verbally before notary)	0(*laboronly*)|||**SUBTOTAL—PendingRepairs*** | * * [SUM]**

F. GRAND TOTAL — WHAT SHE OWES

Category	Conservative	Aggressive
A. Rent overpayment	$2,772	$72,000
B. Repair reimbursement	$[TO BE FILLED]	$[TO BE FILLED]
C. AC rent reduction (3 months)	$9,000	$16,500

D. Cable TV overpayment	$[TO BE FILLED]	$[TO BE FILLED]
E. Pending repairs (her obligation)	$[TO BE FILLED]	[*TOBEFILLED*]|| * * *GRANDTOTAL* * * | * *[SUM] + repairs**

Instructions: Fill in the **[TO BE FILLED]** amounts from your receipts, bank records, and repair estimates. Once completed, the grand total becomes the specific dollar amount cited in the formal demand letter. Even with conservative estimates, the landlord likely owes the tenant **tens of thousands of pesos** — transforming the dynamic from "tenant owes landlord higher rent" to "landlord owes tenant significant reimbursement."

This is your leverage. She thinks you owe her $13,500/month. The reality is she owes YOU.

Which Rent Is the Tacit Renewal Baseline?

This is a critical question with two possible answers depending on legal strategy:

Conservative position (most likely in practice): $12,000/month

The tenant signed a new contract each year, and the landlord returned the prior year's pagarés. Each new contract was a separate agreement that replaced the prior one. The LAST signed contract (Year 4) set the rent at $12,000. The Year 5 proposed amounts ($12,500 communicated, then bait-and-switched to $13,500) were NEVER signed. Tacit renewal under Art. 2739 preserves the terms of the last signed contract — so the tacit renewal rent is **$12,000/month**.

Under this position: - The proposed $13,500 is a 12.5% increase over the last signed rent — exceeding the 10% Art. 2738 cap - Even $12,500 (the originally communicated amount) would be a 4.2% increase requiring justification - The tacit renewal rent of $12,000 is the amount the tenant should continue paying

Aggressive position (nuclear option — requires litigation): $9,000/month

If ALL subsequent contracts are absolutely null under Art. 383(d) (the tenant never validly consented because he doesn't speak Spanish), then no valid new contract ever replaced the Year 1 agreement. The Year 1 rent of $9,000 would be the only validly agreed amount, and tacit renewal would preserve it at that level. The tenant would have overpaid by up to $114,000 MXN.

Under this position: - Every rent increase is void because it was embedded in a null contract - The overpayment is a counterclaim for unjust enrichment - But this requires a court to declare all subsequent contracts null — a lengthy process

Recommended approach: Use **$12,000** as the working rent (conservative position) while preserving the **$9,000** argument as leverage in negotiations or litigation. Pay $12,000 under tacit renewal. If she escalates, the $9,000 argument is a powerful weapon in court.

Key Legal Points on the Rent Increases

1. **Art. 2738 makes it ILLEGAL to raise rent more than 10%.** The article states: *"The landlord may increase the previous rent by up to ten percent, provided they demonstrate that rents in the relevant area have experienced increases that justify the increase."* Two conditions, BOTH mandatory: (a) maximum 10% hard cap, and (b) the landlord must PROVE area rent increases justify it. The burden of proof is on the landlord.

2. **Two increases violated the 10% cap outright:**

   - Year 2: $9,000 → $10,000 = **11.1%** — ILLEGAL (exceeds 10%)
   - Proposed Year 5: $12,000 → $13,500 = **12.5%** — ILLEGAL (exceeds 10%)

   The remaining increases (10.0%, 9.1%) were at or below 10% but STILL required justification that was never provided. An increase below 10% is not automatically legal — the landlord must still demonstrate that area rents justify it.

3. **The pattern of increases is evidence of exploitation.** Whether the tacit renewal rent is $9,000 or $12,500, the landlord raised rent every year without justification, embedded in contracts the tenant couldn't read,

with last-minute price changes at signing appointments. This is textbook exploitation under Art. 24-26.

4. **No increase was ever agreed to in a language the tenant understood.** Each rent increase was embedded in a Spanish-only contract that the tenant could not read. Under Art. 383(d), his agreement to higher rent does not legally exist.

5. **The bait-and-switch confirms the pattern.** The landlord communicated $12,500, then changed to $13,500 at the appointment. This is not a negotiation — it's a pattern of extracting the maximum possible from a tenant who doesn't fully understand the process.

6. **Cancun context:** While Cancun property values have increased significantly (13-14% annually in 2023-2025), and Quintana Roo housing costs have risen 10-15%, these are PROPERTY VALUES, not rental indices. The legal standard under Art. 2738 is area RENT increases, not property price appreciation. The average rent for a 1-bedroom outside Cancun city center is currently ~$9,000/month — exactly the tenant's original rent, suggesting the original amount was fair and remains within market range.

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3. HOW PREDATORY IS THIS CONTRACT

A Pattern of Exploitation, Not a One-Time Incident

If the prior contract contains the same or similar terms as this proposed contract — and the evidence suggests it does — then the landlord has been using this predatory template **for up to 5 years** against a tenant who cannot read Spanish. This is not a negotiation gone wrong. This is systematic exploitation.

Art. 24 of the Quintana Roo Civil Code: > Contracts that exploit the ignorance, inexperience, or necessity of one party to obtain unjust advantage are NULL.

Art. 23: > Protection of the economically, socially, and culturally weak is a matter of public order.

Art. 25: > The nullity arising from exploitation is imprescriptible — there is no statute of limitations.

The contract exploits the tenant in the following ways:

Exploitation Mechanism	How It Works
Language barrier	Entire contract in Spanish. No translation. No interpreter. Tenant cannot understand what he signs. (Art. 383(d))
Repair-shifting	Mandatory landlord obligations (Art. 2687) transferred to tenant through Clauses 5, 6, and 7. Tenant has paid for roof, water heater, plumbing, faucets, water pump, water tank — all legally the landlord's responsibility.
Usurious interest	10% per MONTH (120% annual). Legal rate is 12% per YEAR. This is 10x the legal rate. (Art. 2659)
Promissory notes	12 signed pagarés create independently enforceable debt instruments outside the civil lease framework. Fast-track commercial enforcement bypasses all tenant protections.
Constructive acceptance	"By occupying, tenant accepts property in perfect condition" — forces tenant to waive all defect claims for a property with known broken items.
	$27,000 per violation. Multiple violations

Penalty stacking	= multiple penalties. ANY contract breach (Clause 9(g) catch-all) triggers it. A single late utility receipt could cost $27,000.
Furniture seizure	Landlord authorized to seize tenant's personal property without court order. Illegal self-help.
Death provisions	30 days for family to vacate. Landlord can enter, take belongings, sell them after 45 days. Contradicts Art. 2683 (lease continues with heirs).
Prior agreement destruction	Clause 15 wipes out ALL prior agreements — oral, written, notarized. One signature erases 5 years of accumulated tenant protections.
Cable TV trap	Service in landlord's father's name. Tenant cannot cancel or return equipment. Forced to pay for unwanted service. Non-payment could trigger eviction under Clause 9(b).
Utility bill trap	Accounts in landlord's name (no online access for tenant). No mailbox at property. Physical bills blow away. Contract requires tenant to provide receipts and threatens eviction for non-payment — but tenant has no reliable way to receive or access bills. Landlord controls the information needed for compliance, then penalizes non-compliance.
Bait-and-switch rent	Communicated $12,500, changed to $13,500 at the signing appointment. Classic deceptive tactic (Art. 198 — fraud).
No contract copy	Tenant never received a copy of the signed contract. Cannot verify terms. Cannot exercise informed rights.

This is not a lease agreement. It is a debt trap with a house attached.

What Makes It Predatory (Legal Standard)

Under Mexican civil law, a contract is predatory/exploitative when it meets these criteria (all met here):

1. **One party has significantly less bargaining power** — Foreign tenant who doesn't speak Spanish, depends on the housing, traveled from out of town to sign
2. **The stronger party exploits that disadvantage** — Spanish-only contract, no translation, no time to review, last-minute price change
3. **The terms are grossly one-sided** — Every clause benefits the landlord. The tenant benefits from zero clauses. (See Section 10 comparison table: landlord wins 15 of 17 categories)
4. **Mandatory legal protections are systematically overridden** — Art. 2687 (repairs), Art. 2683 (death), Art. 2739 (renewal), Art. 2714 (notice), Art. 2659 (interest), Art. 2738 (rent cap)
5. **The unjust advantage is disproportionate** — Tenant pays for everything, bears all risk, signs debt instruments, can lose personal property, faces $27,000+ penalties for minor violations, while the landlord's only obligation is to… own the building

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4. WHAT THE LAW GIVES YOU (REGARDLESS OF ANY CONTRACT)

The Prior Contract's Predatory Clauses Were Always Null

If the prior contract contained the same terms as this proposed contract, those terms were **never legally valid**. Here's why:

Mandatory law cannot be waived by contract (Art. 8, 9): - Art. 8: Except for dispositive norms, parties cannot exempt themselves from mandatory law - Art. 9: Only private rights can be waived, and only when they don't affect public interest - Tenant protection under Art. 2698 is mandatory and affects public interest

Null clauses in the prior contract (if same as this one):

Clause	Why It Was Always Null	Legal Basis
"Tenant pays all repairs" (Clause 5/7)	Landlord repair obligation is mandatory	Art. 2687, 2698 ("any stipulation to the contrary shall be null")
10% monthly interest (Clause 3)	Usurious — 10x legal rate	Art. 2659 (judge can retroactively reduce and forfeit all interest)
"Perfect working condition" acceptance (Clause 6)	Cannot waive mandatory repair obligations by legal fiction	Art. 2687, 2698
Furniture seizure (Clause 12)	Self-help seizure requires court order	General Mexican procedural law
Death = termination (Clause 9(h)/10)	Lease survives death by default	Art. 2683
"Not renewed" declaration (Clause 13)	Tacit renewal operates by law	Art. 2739 (cannot be contractually prevented)
Automatic vacancy (Clause 1)	Self-executing eviction is illegal	Art. 2714 (2 months' notice required)
Catch-all "any violation" eviction (Clause 9(g))	Landlord rescission grounds are exhaustive	Art. 2741 (QR), Federal Art. 2489 (only 3-5 specific grounds allowed)
All penalties (Clause 13)	Disproportionate; judicially reducible; exploitation of ignorance	Art. 291 (judge reduces excessive penalties), Art. 24-26 (null, imprescriptible)

The practical effect: Under tacit renewal (Art. 2739), the lease renewed for an indefinite term. The valid portions of the contract carry forward (residential use, rent amount, basic tenant obligations like paying utilities). The null portions — everything in the table above — were never valid and don't carry forward because they never existed as legal obligations in the first place.

Tacit Renewal + Mandatory Law = Your Current Rights

When the prior lease expired and you kept paying rent and she kept accepting it, Art. 2739 activated. The lease renewed indefinitely. Combined with the nullity of predatory clauses, your current legal position is:

- **Indefinite-term lease** at the original rent
- **2 months' notice** required for termination (Art. 2714)
- **Landlord responsible for all necessary repairs** (Art. 2687)
- **Tenant responsible only for small repairs** (Art. 2725)
- **No promissory notes** for the renewal period (term-specific, expired)
- **No stacking penalties** (null from inception)
- **No furniture seizure** (null from inception)
- **No automatic vacancy** (null from inception)
- **Dogs permitted** (verbal agreement + years of acquiescence)
- **Lease continues with heirs** if either party dies (Art. 2683)

- **Rent increase capped at 10%** with proof of area increases (Art. 2738)
- **Active counterclaims** for repair reimbursement

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5. THE LANDLORD'S WEAPONS ARE BLANKS

The landlord has several apparent threats. None of them work.

4.1 "You Were Late on Payments"

Why it fails: You have electronic bank transfer records proving **on-time or early payment every month**. There are no late payments.

Even if there had been occasional late payments: - She **accepted them without objection** — that's legal waiver of the right to complain - The 120% annual interest clause is usurious and null (Art. 2659) - Art. 2741 only allows lease rescission for **non-payment**, not late payment - Her own contract (Clause 9(a)) requires **2+ months completely unpaid** before termination - If you always paid, she has nothing

4.2 "You Owe Penalties"

Why it fails (multiple independent reasons):

1. **Has she ever invoked a penalty in 5 years?** If not, she waived enforcement through prolonged inaction. You cannot sit on a contractual right for years and then spring it retroactively.
2. **Art. 383(d):** If the entire contract is absolutely null due to the language barrier, every clause is null — including penalties.
3. **Art. 24-26:** Disproportionate penalties ($27,000 per violation, stacking) imposed on a tenant who couldn't understand the contract = exploitation of ignorance. Null and imprescriptible.
4. **A judge can reduce disproportionate penalties** under general Mexican civil law principles of equity.
5. **She has no actual damages.** You paid rent on time. You maintained the property. You made repairs she should have made. What economic harm did she suffer? Penalties must bear some relationship to actual loss.

4.3 "You Have Dogs Without Permission"

Why it fails:

1. **She verbally agreed to dogs before the notary.** The notary is an implicit witness to this oral agreement. Oral agreements are legally binding in Mexico.
2. **She has seen the dogs and never objected for years.** Prolonged acquiescence = implied consent. She cannot allow something for years then suddenly claim it's a violation.
3. **One dog is a service dog.** Service animals are protected under Mexico's General Law for the Inclusion of Persons with Disabilities (2011). A landlord cannot restrict a service animal.
4. **She never charged the Clause 11 penalty.** Same waiver-through-inaction argument.
5. **Art. 383(d) again.** If the tenant couldn't understand the no-pets clause because the contract was in Spanish, he couldn't knowingly agree to it, let alone knowingly violate it.

4.4 "You Didn't Pay Utilities" (Cable TV)

Why it fails:

- The cable TV/internet service is contracted in **the landlord's father's name**
- The tenant **cannot cancel it** — it's not his account
- The tenant **cannot return the equipment** — it belongs to a third party's contract
- The tenant **did not choose this service** — it was imposed on the property
- You **cannot have an obligation to pay for a third party's contract** that you cannot manage, modify, or cancel
- If you HAVE been paying it, that's **unjust enrichment** — the landlord's family has been subsidized by the tenant for years, creating a **counterclaim for reimbursement**

- Clause 9(b) (eviction for 2+ months unpaid utilities) cannot apply to a service that isn't in the tenant's name

For utilities actually in your name or under your control (electricity, water, gas, trash): if you're paying them, she has nothing. Keep the receipts.

There is an additional problem: the contract requires you to provide payment receipts (Clause 7) and threatens eviction for unpaid utilities (Clause 9(b)), but you have **no reliable access to the bills**. The accounts are in the landlord's name (no online access for you), there is no mailbox at the property, and physical bills blow away down the street. **She controls the billing information you need to comply, then penalizes you for not complying.** This is a manufactured compliance failure — a built-in eviction trigger she can pull at any time by simply not sharing bill information.

4.5 "The Contract Expired — Get Out"

Why it fails:

- Tacit renewal (Art. 2739) activated automatically when you stayed and she accepted rent
- The lease is now indefinite-term
- She must give 2 months' notice (Art. 2714)
- Even then, you can request a 1-year extension (Art. 2738)
- Even if she refuses the extension, she needs a court order to evict
- In court, you raise every defense in this document
- Court proceedings take months to years
- You remain in the property the entire time

4.6 "Sign This New Contract or Else"

Why it fails:

- There is no "or else." She cannot force you to sign.
- Threatening eviction to coerce a signature is duress (Art. 193 — consent obtained by fear is not valid)
- You have no legal obligation to sign a new contract
- Your current rights under tacit renewal are stronger than anything this contract offers
- Her only real option is to accept the status quo or negotiate on YOUR terms

Summary: Her Leverage Is Zero

Her Threat	Your Defense	Result
Late payments	Bank records: always on time	Dead
Penalties	Never invoked; null (Art. 24-26, 383(d)); no damages	Dead
Dogs	Verbal consent; acquiescence; service dog	Dead
Cable TV	Not your account; not your service; counterclaim	Dead (and reversed)
Contract expired	Tacit renewal (Art. 2739)	Dead
Commercial use (scuba gear)	Storing work equipment at home is residential use, not commercial	Dead
Sign or get out	No obligation to sign; duress is void (Art. 193)	Dead
Promissory notes	All returned in prior years; none signed this year	Dead

She has no live weapons. Every threat is a blank. The pagarés were returned each year, none were signed this year, rent is proven paid, and tacit renewal is airtight.

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6. CLAUSE-BY-CLAUSE ANALYSIS

DECLARATIONS — LANDLORD

Declaration 1(a): Legal Capacity

> She is a natural person, of Mexican nationality, with full legal capacity to bind herself.

Risk Level: GREEN

Standard legal capacity declaration. No issues.

Declaration 1(b): Property Ownership

> She is the legitimate owner with full possession and use of the property…registered under number 162086 in the Public Registry of Property and Commerce.

Risk Level: RED

Legal Issues: - The landlord has previously stated that the property belongs to **her parents**. Now she claims to be the "legítima propietaria" (legitimate owner). - Under Art. 2679, a non-owner may only lease if authorized by the owner. If she is not the owner, this contract is potentially void. - If she IS the owner, then her prior statements to the tenant were lies — which constitute fraud (Art. 198) and reticence (Art. 205). - Either way, there is a material misrepresentation. The registry number (162086) can and should be verified at the Public Registry.

Recommendation: REJECT as written. Demand proof of ownership (registry certificate) before signing any contract. If she is not the registered owner, the contract is voidable.

Declaration 1(d): Intent to Lease

> She wishes to grant occupancy and lease of the Property.

Risk Level: GREEN

Standard declaration.

Declaration 1(e): Property Condition

> The Property is in good condition for use and is not subject to any judicial, labor, tax, or administrative proceedings.

Risk Level: YELLOW

Legal Issues: - The property is NOT in good condition. The water heater is broken (again), the toilet barely flushes, the shower drain is blocked, and other items need repair. - This declaration is false, and the landlord knows it. Including it is an attempt to establish a false baseline. - If the tenant signs, the landlord will argue the tenant accepted the property "as is."

Recommendation: REJECT. Any contract should truthfully describe the property condition and include a repair schedule.

DECLARATIONS — TENANTS

Declaration 2(a): Legal Capacity and Immigration

> NESTOR ELDON WHEELOCK of American nationality, who proves his legal stay in the country with his valid immigration document and passport, which are attached as "Annex A."

Risk Level: YELLOW

Legal Issues: - Attaching immigration documents to a private lease contract is unusual and potentially concerning. These sensitive documents become part of a contract in the landlord's possession. - This is not legally required for a lease agreement.

Recommendation: Provide immigration documents for verification but do not allow them to be attached as a permanent annex. Demand that originals be returned and copies destroyed after verification.

Declaration 2(d): Property Inspection

> They have inspected the interior of the "PROPERTY", noting that the furnishings inside are in normal working condition.

Risk Level: RED

Legal Issues: - This is factually FALSE. The following items are NOT in normal working condition: - Water heater (broken again after tenant's prior repair) - Toilet (barely flushes) - Shower drain (slow/blocked) - Various other items documented in the repair history - Signing this declaration would constitute a **waiver of all existing repair claims** and would prevent the tenant from demanding the landlord fix anything currently broken. - Combined with Clause 6 (constructive acceptance), this creates an airtight trap: the tenant declares everything works, and then by occupying the property, confirms it's in "perfect working condition."

Recommendation: ABSOLUTELY REJECT. If any contract is signed, it must include a truthful condition report listing all known defects and a binding repair schedule.

CLAUSE 1: PURPOSE AND TERM

> ...a term of one year beginning on the thirteenth of March of two thousand twenty-six, and which shall therefore expire on the thirteenth of March of two thousand twenty-seven, the final date on which the Landlord shall receive from the Tenants the vacancy of the Property without the need for any legal proceedings or formalities.

Risk Level: RED

What It Says: Fixed 1-year term (March 13, 2026 - March 13, 2027). At expiration, the tenant must vacate automatically — no court process, no notice required.

Legal Issues: - **Contradicts Art. 2714:** For indefinite-term urban leases, 2 months' notice is required for termination. The "without need for any legal proceedings" language attempts to bypass this mandatory requirement. - **Attempts to defeat tacit renewal (Art. 2739):** By locking in a fixed term with automatic vacancy, the landlord tries to prevent the indefinite renewal that would otherwise occur. - **Art. 2738 right eliminated:** The tenant's statutory right to request a 1-year extension within 15 days of expiration (with rent increases limited to 10% with justification) is effectively nullified by the automatic vacancy clause. - **Self-executing vacancy is illegal.** Under Mexican law, a landlord cannot evict a tenant without judicial proceedings. The phrase "without the need for any legal proceedings or formalities" is unenforceable.

Compared to Tacit Renewal Status Quo: - Under tacit renewal, the tenant has an **indefinite-term** lease that requires **2 months' notice** to terminate. - This clause replaces that with a **fixed 1-year** term with **automatic vacancy**. - The tenant loses the security of indefinite tenure.

Recommendation: REJECT. If negotiating, demand either an indefinite term or a multi-year term with renewal rights matching Art. 2738-2739.

CLAUSE 2: RENT

> ...a monthly rent of $13,500.00...paid by interbank transfer...on the eleventh of each month.
>
> The Tenants shall guarantee payment of rent by signing twelve promissory notes.

Risk Level: RED

What It Says: Monthly rent of $13,500 MXN, paid by bank transfer on the 11th of each month. PLUS twelve signed promissory notes (pagarés) as guarantee.

Legal Issues: - **The bait-and-switch amount.** The landlord originally communicated $12,500, then changed it to $13,500 at the signing appointment. This is the fraudulent amount. - **Art. 2738 limits rent increases to 10%.** Even if the landlord could legally increase the rent, the increase must be justified by demonstrated area increases and is capped at 10%. A jump from the original rent to $13,500 may exceed this cap. - **Promissory notes are independently enforceable.** See Section 9 for a full analysis. This is the single most dangerous financial mechanism in the contract. - **No provision for reduction.** If there are defects in the property (which there are), Art. 2687-2692 entitle the tenant to a rent reduction proportional to the diminished use. This contract ignores that right.

Compared to Tacit Renewal Status Quo: - Under tacit renewal, the rent remains at the **original agreed amount**. - The landlord would need to follow Art. 2738 procedures and justify any increase (capped at 10%). - There are NO promissory notes under the current arrangement.

Recommendation: REJECT. The rent amount is the product of a bait-and-switch. The promissory notes are a dealbreaker. Any negotiated rent must comply with Art. 2738 limits and must NOT include promissory notes.

CLAUSE 3: LATE INTEREST

> ...late interest...calculated at an interest rate of 10% (ten percent) per month.

Risk Level: RED

What It Says: 10% interest per month on any unpaid amounts.

Legal Issues: - **This is 120% annual interest.** For comparison, the legal interest rate under Art. 2659 is **12% per year** (1% monthly). - **Art. 2659 on usury:** "If no legal or conventional interest has been agreed upon, the rate will be twelve percent per annum. Should the debtor claim that the conventional interest is disproportionately higher than the legal rate [...] it shall be retroactively reduced to a rate that does not exceed twice the legal rate [...] and the creditor shall be sentenced to the loss of all interest." - **10% monthly = 10x the legal rate.** Under Art. 2659, a judge can retroactively reduce this to no more than 24% annual (2% monthly) and may order the creditor to forfeit ALL interest. - **This is predatory lending disguised as a lease clause.** A 120% annual rate would be illegal even in a commercial loan agreement.

Compared to Tacit Renewal Status Quo: - Under the current arrangement, no interest rate is specified (or the prior contract's terms apply, but are subject to the same Art. 2659 reduction). - Any late payment would be subject to the legal rate of 12% per year, not 120%.

Recommendation: REJECT. If negotiating, demand the legal rate (12% annual) or at most a reasonable conventional rate. Any rate above 24% annual is vulnerable to judicial reduction.

CLAUSE 4: DEPOSIT

> ...the amount of $13,500.00 as a deposit to guarantee the repair of damages...and the payment of each and every public utility...
>
> The deposit shall not count as rent under any circumstances.

Risk Level: YELLOW

What It Says: $13,500 deposit (equal to one month's rent). Covers damages AND unpaid utilities. Refundable after verification of all obligations. Cannot be applied as last month's rent.

Legal Issues: - The deposit amount is standard (one month's rent). - The prohibition on applying the deposit as rent is common but notable — it means the tenant cannot use it to cover the last month. - The refund is

conditioned on “vacancy of the Property in good condition of use” — combined with Clause 6 (everything received in “perfect working condition”), this creates a trap: the landlord can claim pre-existing damage was caused by the tenant and withhold the deposit. - There is no timeline specified for the refund. Mexican law generally requires prompt return, but the absence of a deadline gives the landlord room to delay indefinitely.

Compared to Tacit Renewal Status Quo: - The tenant already paid a deposit under the existing arrangement. Signing a new contract doesn’t create a new deposit obligation (it’s the same deposit).

Recommendation: NEGOTIATE. If any contract is signed: (a) demand a truthful property condition report attached as an annex, (b) specify a refund deadline (e.g., 30 days after vacancy), (c) specify that normal wear and tear is not deducted.

CLAUSE 5: USE OF THE PROPERTY

> …exclusively as a residential dwelling…
>
> …any repair, maintenance, or upkeep that the furniture or equipment listed in Annex B may require shall be at the expense of the Tenants, who agree to return them in optimal conditions of use.

Risk Level: RED

What It Says: Property is for residential use only (fine). BUT all repairs and maintenance of Annex B items (furniture and equipment) are the tenant’s responsibility. Tenant must return them in “optimal conditions of use.”

Legal Issues: - **Art. 2687 is mandatory.** The landlord’s obligation to maintain the property “in conditions suitable for the use agreed upon, making for this purpose any necessary repairs” CANNOT be waived. Art. 2698 states: “any stipulation to the contrary shall be null.” - **The “Annex B” trick.** The prior contract allegedly had a blanket “tenant pays for ALL repairs” clause. This new version narrows it to “Annex B items” — but the effect is the same if Annex B includes ALL the property’s appliances, furniture, and equipment. - **“Optimal conditions of use” is an impossible standard.** Normal wear and tear is expected. Requiring “optimal” conditions sets the tenant up for penalty deductions at move-out regardless of how carefully they treat the property. - **Art. 2725:** The tenant is only obligated for “small repairs” (pequeñas reparaciones) — things that normally deteriorate from daily use.

Compared to Tacit Renewal Status Quo: - Under the current arrangement, Art. 2687 applies: the landlord is responsible for all necessary repairs. Even if the prior contract had a “tenant pays all” clause, that clause is legally null (Art. 2698). - This clause attempts to repackage the same illegal obligation.

Recommendation: REJECT the repair-shifting language. Accept the residential-use restriction. Any contract should clearly state that landlord maintenance obligations per Art. 2687 apply.

CLAUSE 6: RECEPTION AND REMODELING

> By the mere act of occupying the Property, it is understood that the Tenants receive it in perfect working condition.
>
> Any improvement or remodeling work…must be previously authorized in writing…and such improvements shall remain for the benefit of the Property without the Landlord being obligated to pay any amount.

Risk Level: RED

What It Says: Occupying the property = accepting it in “perfect working condition.” Any improvements made by the tenant become the landlord’s property for free.

Legal Issues: - **Constructive acceptance is a legal fiction.** The property is NOT in perfect working condition. The water heater is broken, the toilet barely works, the shower drain is blocked. Signing this clause = waiving the right to demand repairs for ALL current defects. - **Art. 2687 cannot be bypassed this way.** The landlord’s repair obligations exist by operation of law, regardless of what the tenant “accepts.” However, proving a defect existed

BEFORE the acceptance becomes much harder once this clause is signed. - **Improvements clause is one-sided.** Art. 2694 provides that the landlord must pay for certain improvements (those that add value to the property). This clause waives that right entirely. - **Art. 2698 nullity.** This clause is a “stipulation to the contrary” of Art. 2687 — it should be null. But the tenant would have to litigate to establish that.

Combined with Declaration 2(d): The tenant first declares furnishings are in “normal working condition” (declaration), then by occupying, accepts the property in “perfect working condition” (clause). This is a two-step trap to eliminate all defect claims.

Compared to Tacit Renewal Status Quo: - Under the current arrangement, the landlord remains liable for ALL necessary repairs (Art. 2687) and the tenant has active claims for unreimbursed repairs and pending repairs. - Signing this clause destroys all of those claims.

Recommendation: ABSOLUTELY REJECT. This is one of the most dangerous clauses in the contract. Any contract must include a truthful property condition inventory.

CLAUSE 7: MAINTENANCE AND UTILITIES

> Tenants shall bear all expenses corresponding to the internal maintenance…except hidden defects.
>
> …Tenants are obligated to maintain the air conditioning units and refrigerator every five months, at their own expense…performed by technicians assigned by the Landlord.
>
> Tenants shall also pay…electricity, trash collection, gas, telephone, cable television, Internet, etc.

Risk Level: RED

What It Says: Tenant pays for ALL internal maintenance (except hidden defects). AC and refrigerator maintenance every 5 months with landlord’s chosen technicians at tenant’s expense. Tenant pays all utilities and must provide payment receipts to the landlord.

Legal Issues: - **Art. 2687 violation.** “Internal maintenance” is a broad term that encompasses necessary repairs — which are the landlord’s legal obligation. Only “small repairs” (Art. 2725) can be assigned to the tenant. - **Landlord-assigned technicians at tenant’s expense** is a conflict of interest. The landlord chooses the technician, the tenant pays. No price control, no right to choose an alternative, no cap on cost. The landlord could send an expensive technician every 5 months as a profit mechanism. - **Every-5-month AC maintenance** is excessive for residential property and may constitute an unreasonable financial burden. - **Cable TV trap:** The tenant is paying for a cable TV/internet service they neither want nor use, in the **landlord’s father’s name**. The tenant cannot cancel it (not his account) and cannot return the equipment (it belongs to the father’s contract). This clause formalizes an obligation to pay for a third party’s service — which is not a valid tenant obligation. If the tenant stops paying, the landlord could invoke Clause 9(b) (2+ months unpaid utilities = eviction) for a service the tenant never contracted for and cannot control. This is a trap within a trap. - **The utility bill delivery trap:** The contract requires tenants to provide payment receipts to the landlord (Clause 7) and threatens eviction for 2+ months unpaid utilities (Clause 9(b)). But the tenant has **no reliable way to receive or access the bills**: (a) utility accounts are in the landlord’s name — the tenant has no online access; (b) there is no mailbox at the property — physical bills cannot be reliably delivered; (c) bills that are delivered blow away down the street with no secure delivery point. The landlord controls the billing access the tenant needs to comply, and the tenant’s inability to comply becomes grounds for eviction. **You cannot penalize someone for failing to provide proof of payment when you control access to the billing system and have failed to provide a means of receiving bills.** This is a manufactured compliance failure. - **Receipt monitoring** gives the landlord surveillance over the tenant’s utility compliance, creating a trigger mechanism for early termination.

Compared to Tacit Renewal Status Quo: - Under tacit renewal, Art. 2687 applies: landlord pays for necessary repairs. - The tenant pays utilities (standard), but there’s no mandatory landlord-controlled maintenance requirement. - The cable TV issue should be resolved: either transfer the account to the tenant’s name, cancel it, or the landlord’s family reimburses the tenant for all prior payments.

Recommendation: REJECT the maintenance-shifting language. Accept utility payment obligations (standard). Demand resolution of the cable TV issue. Reject the landlord-assigned technician requirement, or at minimum

demand a cost cap and right to alternative providers.

CLAUSE 8: SUBLETTING

> Prohibited from subletting, transferring, lending, or assigning…any subleases made in violation shall be null…and shall give rise to forced execution…including immediate vacancy.

Risk Level: YELLOW

What It Says: No subletting or assignment without landlord consent. Violation = null transfer + immediate eviction.

Legal Issues: - A subletting prohibition is standard and legal (Art. 2741 allows rescission for subletting). - The "forced execution" and "immediate vacancy" language is aggressive but mirrors the early termination provisions in Clause 9. - Self-help eviction (without court order) is still illegal regardless of what the contract says.

Compared to Tacit Renewal Status Quo: - The subletting prohibition likely exists in the prior contract and continues under tacit renewal. - No material change.

Recommendation: ACCEPT. This is a standard clause. The tenant has no intention to sublet.

CLAUSE 9: EARLY TERMINATION

> …the Landlord may terminate this Contract early and consequently evict the Tenants in the event that they fail to comply with any of the obligations…
>
> a. Failure to pay 2+ months rent
> b. Failure to pay 2+ months utilities
> c. Unauthorized change of use
> d. Unauthorized modifications
> e. Unauthorized subletting
> f. Introduction of toxic/explosive substances **g) Failure to comply with ANY obligation**
> g. Death of the Tenants

Risk Level: RED

What It Says: Landlord can terminate and evict for ANY violation, with a specific list of triggers including a catch-all provision.

Legal Issues: - **Subsection (g) is a catch-all that swallows the entire contract.** Any minor violation of any clause — even a 1-day late utility payment, or failing to provide a receipt to the landlord — becomes grounds for eviction. This is disproportionate. - **Art. 2741 limits eviction grounds** to: non-payment, misuse of property, or subletting. The contract cannot expand eviction grounds beyond what the law permits. - **Subsection (h) — death as termination — directly contradicts Art. 2683:** "The lease is not rescinded by the death of the landlord or the tenant, except by special agreement." While this contract includes the "special agreement," Art. 2683 was designed to protect heirs. Combined with Clause 10, this creates an extremely harsh outcome for tenant's family. - **"Eviction" without court process is illegal.** No matter what this clause says, the landlord cannot physically evict the tenant without a court order.

Compared to Tacit Renewal Status Quo:

Under tacit renewal, the statutory eviction grounds in Art. 2741 always apply: non-payment, misuse of property, or subletting. The contract's expanded grounds (the catch-all, death, etc.) are more nuanced — tacit renewal technically preserves the "same terms" of the prior lease, so valid contractual grounds could theoretically carry forward. However, even if they do:

- **Clause 9(g) (any violation = eviction) is likely null** — it's disproportionate and arguably void under Art. 24-26 (exploitation). No court would uphold eviction for failing to provide a utility receipt.
- **Clause 9(h) (death) contradicts Art. 2683** — null.

- **Clauses 9(a)-(f) basically mirror Art. 2741 anyway** — non-payment, misuse, unauthorized modifications, subletting, hazardous materials.
- **The entire contract is potentially null under Art. 383(d)** — if the contract is null, all expanded eviction grounds are null too.
- **She has never invoked any of them in 5 years** — prolonged inaction constitutes waiver.

A note on "commercial use" (Clause 5 / Clause 9(c) / Art. 2741): Storing professional equipment at a residential property is NOT commercial use. The tenant is a scuba diving professional who keeps diving gear used for client work at his home. This is normal residential behavior — no different from a carpenter keeping tools in his garage or a photographer keeping cameras in her closet. "Commercial use" under the law means operating a business FROM the property: customers visiting the address, commercial signage, transactions conducted on-site. Simply storing work equipment where you live is not a change of use or purpose. No court would sustain an eviction on these grounds.

A note on "unauthorized modifications" (Clause 6 / Clause 9(d)): "Modifications" and "remodeling" in the legal context means structural or permanent alterations — knocking out walls, changing plumbing layouts, adding rooms, altering the floor plan. The contract and the law are concerned with changes that permanently alter the property's character or value. The following are NOT "modifications" in any legal sense:

- **Painting walls a different color** is cosmetic and fully reversible. The tenant intends to repaint to the original color before vacating. Paint is not a structural modification — it's normal residential personalization that every tenant does.
- **Installing security cameras** was done with the landlord's express permission. The landlord was asked and responded that it was fine as long as the tenant fills the screw holes upon departure. This is: (a) explicitly authorized (Clause 6 requires "prior written authorization" — her verbal consent satisfies this, especially since she specified the condition for restoration); (b) fully reversible (fill holes, which the tenant agreed to do); and (c) a security improvement that benefits the property.

Neither of these is grounds for eviction under Clause 9(d). Both are reversible, one was expressly authorized, and neither constitutes a "remodeling" or structural alteration. If the landlord tried to use either as a trigger for the $27,000 penalty or eviction, it would fail on its face — and would further demonstrate the predatory nature of the catch-all provisions.

Recommendation: REJECT the catch-all (subsection g). REJECT death as a termination event (subsection h). Accept subsections (a)-(f) as standard, but demand that "eviction" requires judicial process.

CLAUSE 10: DEATH PROVISIONS

> In the event of death of the Tenants…family members shall have 30 days to surrender the Property…
>
> …the Landlord may open the apartment and place personal belongings under safekeeping for 45 days…after that period, they may be sold or shall become the Landlord's possession.
>
> In the event of the Landlord's death, the Tenants shall have 45 days to surrender the Property.

Risk Level: RED

What It Says: If tenant dies: family gets 30 days to vacate and pay all debts. If no family, landlord can enter, take personal belongings, and after 45 days sell them or keep them. If landlord dies: tenant gets 45 days to vacate.

Legal Issues: - **Art. 2683 directly contradicts this.** Leases survive the death of both landlord and tenant and continue with heirs. This clause requires a "special agreement" to override Art. 2683, which the contract provides — but the outcome is grossly one-sided. - **Asymmetry:** Tenant's family gets 30 days; landlord's death gives tenant 45 days. In both cases, the lease terminates — but Art. 2683 says it should continue with heirs. - **Seizure/sale of personal belongings is illegal self-help.** A landlord cannot unilaterally enter a property, take personal belongings, and sell them. This requires court-supervised proceedings. - **Inheritance law applies.** The tenant's belongings are part of their estate and must pass through probate, not through the landlord's hands. - **The "sell or become landlord's possession" provision is unconscionable.** This amounts to authorized theft of a deceased person's estate.

Compared to Tacit Renewal Status Quo: - Under tacit renewal, Art. 2683 default applies: lease continues with heirs. - No seizure or sale of belongings is permitted.

Recommendation: REJECT entirely. Art. 2683 default (lease continues with heirs) is far more protective. The personal belongings seizure clause is likely unenforceable but creates a chilling effect.

CLAUSE 11: PETS

> Not authorized to bring pets…without the consent of the Landlord…penalty in accordance with clause thirteen.

Risk Level: RED

What It Says: No pets without landlord consent. Violation triggers the Clause 13 penalty ($27,000).

Legal Issues: - **Contradicts the verbal agreement made before the notary.** The landlord verbally agreed to allow dogs during a prior lease signing before the notary. The first dog is a **service dog** that was explicitly agreed upon. The husband's dog was present when he moved in and was seen and acknowledged by the landlord without objection. - **Service dog cannot be legally restricted.** A service animal is a reasonable accommodation. While Mexican federal disability law is less developed than U.S. ADA, Quintana Roo anti-discrimination principles and Mexico's General Law for the Inclusion of Persons with Disabilities (2011) provide protections. - **Clause 15 (nullification of prior agreements) is designed to eliminate the verbal dog agreement.** If the tenant signs, the verbal agreement before the notary is erased and the new "no pets" clause controls. - **A $27,000 penalty for having a pet is disproportionate** and may constitute an abusive clause under Art. 24-26 (exploitation of ignorance/necessity for unjust advantage). - **Years of acquiescence = implied consent.** The landlord has known about and tolerated the dogs for an extended period without invoking penalties or objecting. She cannot retroactively revoke consent she implicitly gave through years of inaction.

Compared to Tacit Renewal Status Quo: - Under tacit renewal, the verbal agreement about dogs (made before the notary) remains in effect. - The landlord has acquiesced to the dogs' presence for an extended period, creating an implied consent. - Signing this contract erases all of that.

Recommendation: REJECT. Any contract must expressly authorize the tenant's existing dogs (including identification as a service dog). The $27,000 penalty is unconscionable.

CLAUSE 12: EARLY DEPARTURE PENALTY

> If the Tenants do not comply with the term stipulated in the first clause…the return of the security deposit is nullified.
>
> …the Tenants agree that their furniture and personal articles of sufficient value may be seized to cover the amount.

Risk Level: RED

What It Says: If the tenant leaves before the full 1-year term, they forfeit the deposit AND the landlord can seize the tenant's personal furniture and belongings.

Legal Issues: - **Deposit forfeiture for early departure may be enforceable** as a liquidated damages provision, but only if the amount is proportionate to the landlord's actual damages. Since the deposit equals one month's rent, this is arguably within reason. - **Seizure of personal belongings is illegal self-help.** Under Mexican law, property seizure (embargo) requires a court order. A contractual clause cannot authorize a private party to seize another's property. This is flatly unenforceable. - **Art. 24-26 nullity:** Exploiting a tenant's necessity (housing) to force agreement to property seizure constitutes exploitation of a weaker party. Such clauses are null. - **Combined with the promissory notes (Clause 2):** If the tenant leaves early, the landlord holds: (a) the forfeited deposit, (b) the remaining promissory notes (which are independently enforceable for the remaining months), AND (c) a contractual right to seize personal property. This is triple jeopardy for a single act.

Compared to Tacit Renewal Status Quo: - Under tacit renewal (indefinite term), there is no "early departure"

concept — the tenant gives 2 months' notice (Art. 2714) and leaves. - The deposit is returned after verification of property condition. - No furniture seizure is possible.

Recommendation: REJECT the furniture seizure clause entirely (it's illegal). The deposit forfeiture is negotiable but should be proportionate.

CLAUSE 13: CONTRACTUAL PENALTIES

> …a contractual penalty the payment of an amount equivalent to twice the Rent (the "Contractual Penalty")…in the event that any of the circumstances listed in the ninth clause are triggered.
>
> …the Tenants shall pay the Contractual Penalty for each month of occupancy after expiration, regardless of the Consideration that continues to accrue, without the Contract being considered renewed.
>
> …as many Contractual Penalties shall be paid as there are circumstances that are triggered…
>
> Payment of the Contractual Penalty does not limit the Landlord's right to pursue early termination.

Risk Level: RED

What It Says: 1. Each Clause 9 violation triggers a $27,000 penalty (2x rent). 2. If tenant stays after the lease expires, $27,000 penalty per month ON TOP of continuing rent. 3. Multiple penalties stack — if three violations occur simultaneously, that's $81,000. 4. Paying the penalty does NOT prevent eviction. 5. **The contract explicitly states it is NOT renewed even if the tenant stays after expiration.**

Legal Issues: - **Directly contradicts Art. 2739 (tacit renewal).** The Civil Code says if a tenant stays after expiration without landlord opposition, the lease renews. This clause says the exact opposite. Art. 2739 is a mandatory provision that cannot be overridden by contract (per Art. 8 and 2698). - **Penalty stacking is disproportionate.** Three simultaneous minor violations could generate $81,000 in penalties. Combined with continuing rent, this could exceed the annual rent itself. Art. 24-26 (exploitation/unjust advantage) applies. - **Penalty + eviction is double punishment.** Forcing the tenant to pay $27,000 AND face eviction for the same violation is punitive, not compensatory. - **The "not renewed" declaration is unenforceable.** Tacit renewal is a legal fact that occurs by operation of law when conditions are met (continued occupancy + rent acceptance + no opposition). A contract clause cannot prevent a legal fact from occurring. - **Combined with the catch-all in Clause 9(g):** ANY violation triggers a $27,000 penalty. Late utility payment? $27,000. Didn't provide a receipt to the landlord? $27,000. This is a penalty machine.

Compared to Tacit Renewal Status Quo: - Under tacit renewal, there are no contractual penalties. - If the landlord wants to terminate, they must give 2 months' notice and go through judicial process. - Rent continues at the original amount.

Recommendation: REJECT entirely. The penalty structure is abusive and much of it is legally null (contradicts Art. 2739, violates proportionality under Art. 24-26). Even in negotiation, no penalty clause should be accepted that overrides tacit renewal rights or stacks penalties.

CLAUSE 14: NOTIFICATION ADDRESSES

> The Landlord: Avenida Álamos, Supermanzana 311… The Tenants: THE PROPERTY that is the subject of this contract.

Risk Level: GREEN

What It Says: Addresses for legal notifications. Standard clause.

Legal Issues: None. Designating the leased property as the tenant's notification address is normal.

Recommendation: ACCEPT. Standard clause.

CLAUSE 15: NULLIFICATION OF PRIOR AGREEMENTS

> This contract cancels and renders null and void any prior agreement, whether oral or written, that the parties may have made in relation to this matter.

Risk Level: RED — THE SINGLE MOST DANGEROUS CLAUSE IN THE CONTRACT

What It Says: Signing this contract destroys EVERY prior agreement — the original notarized lease, WhatsApp promises, verbal agreements before the notary, tacit renewal rights, everything.

Legal Issues: - **This is a novation clause.** Under Art. 2373-2380 (novation), a new obligation can replace an old one — but only by explicit agreement and only if the replacement is valid. - **If the new contract is null (due to language barrier, Art. 383(d)), does the novation survive?** Likely not — a null contract cannot validly novate a prior obligation. - **Even if technically enforceable, this clause is designed to eliminate:** 1. The tacit renewal that gives the tenant an indefinite-term lease at original rent 2. The verbal agreement about dogs (made before the notary) 3. The WhatsApp promises about AC, furniture removal, and other matters 4. Any repair reimbursement claims under the prior arrangement 5. The prior contract's terms (whatever they were) 6. All evidence of the landlord's breaches and broken promises - **Art. 211:** "It is not lawful to waive in advance the nullity resulting from fraud, bad faith, reticence, or violence." If the prior agreements were tainted by fraud (which the defense report argues), the tenant's rights arising from that fraud cannot be waived by this clause.

Compared to Tacit Renewal Status Quo: - Under the current arrangement, ALL prior agreements remain in force: the original lease, tacit renewal, verbal agreements, WhatsApp promises, and repair claims. - Signing this clause erases all of it in one stroke.

Recommendation: ABSOLUTELY REJECT. This is the nuclear clause. It exists specifically to destroy the tenant's accumulated legal protections. Under no circumstances should this be signed.

CLAUSE 16: JURISDICTION

> …the provisions of the Civil Code of the State of Quintana Roo shall apply, and the competent courts of the City of Cancún shall have jurisdiction…

Risk Level: GREEN

What It Says: Quintana Roo Civil Code applies. Cancun courts have jurisdiction. Parties waive any other jurisdiction.

Legal Issues: - This is standard and expected — the property is in Quintana Roo, so QR law applies. - The jurisdiction waiver prevents forum shopping. Since the property is in this jurisdiction anyway, this doesn't materially harm the tenant.

Recommendation: ACCEPT. Standard clause.

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7. THE LANGUAGE/CONSENT PROBLEM

The New Contract Does NOT Cure the Language Barrier

The entire proposed contract is drafted **exclusively in Spanish**. No English translation was provided. No interpreter was present at the March 3, 2026 appointment.

Article 383(d) of the Quintana Roo Civil Code is explicit:

> *"The expression of will does not exist if the person expressing it is…persons who cannot read or write, nor know the language in which they may appear to have contracted."*

This means:

1. **Tenant 1 (Nestor Eldon Wheelock)** does not speak, read, or write Spanish. Under Art. 383(d), his

expression of will **does not exist** when signing a Spanish-only contract.

2. **Art. 384:** The absence of will (Art. 383) produces **absolute nullity** — the most severe form of invalidity under Mexican law.

3. **Art. 388:** Absolute nullity is:

    - Invocable by **anyone** with a legitimate interest
    - **Imprescriptible** (no statute of limitations)
    - **Cannot be waived**, confirmed, or ratified
    - Courts may declare it **on their own motion**

4. **Art. 390:** Absolute nullity "occurs by operation of law and by the mere fact that the violation is committed."

Bottom Line: If the tenant signs this contract, it is immediately vulnerable to absolute nullity under Art. 383(d). But litigating nullity is expensive and time-consuming. It's far better not to sign at all.

This defense applies equally to all prior contracts. The tenant has never signed a Spanish-language contract with full comprehension. All prior notarized leases are potentially null. This is not a one-time problem — it is a **5-year pattern of obtaining signatures from a person who cannot understand the document**, which strengthens the exploitation argument under Art. 24-26.

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8. THE TACIT RENEWAL TRAP

Why NOT Signing Is Better Than Signing

This is the most important strategic section of this analysis.

Current Legal Status (Without Signing the New Contract):

Under Art. 2739 of the Quintana Roo Civil Code:

> *"If after a lease contract has concluded, the tenant continues in enjoyment of the leased thing without opposition from the landlord, the lease shall be renewed…for an indefinite term in the case of urban properties."*

The conditions for tacit renewal have been met: - The prior lease term expired - The tenant continued occupying the property - The tenant continued paying rent - The landlord **accepted** those rent payments - The landlord did **not** formally oppose continued occupancy with 2 months' notice

Result: The tenant currently has an **indefinite-term lease** at the **original rent amount** with all the protections of mandatory law.

What Tacit Renewal Does to the Prior Contract's Predatory Clauses

Tacit renewal carries forward the **valid** portions of the contract (residential use, rent amount, basic obligations). But the predatory clauses don't carry forward for two independent reasons:

Reason 1: They were never valid. Clauses that violate mandatory law (Art. 2687, 2698, 2659, 2683) were null from inception. You complied with them, but you were never legally obligated to. Complying with an illegal clause doesn't make it legal — it just means you performed something you didn't have to.

Reason 2: Term-specific provisions expired. Clauses tied to the fixed term — automatic vacancy, promissory notes for specific months, the "not renewed" declaration — are spent. Tacit renewal creates an indefinite-term lease, and these provisions have no term to attach to.

The practical effect: The law reasserts itself. The predatory overlay gets stripped away because it was either always null or expired with the original term. What remains is an indefinite lease governed by mandatory law protections.

This is precisely why the landlord wants you to sign a new contract. It's the only way to reimpose the predatory terms. Clause 15 (nullification of prior agreements) is the mechanism — it severs your connection to tacit renewal and replaces it with a new fixed term loaded with promissory notes, penalties, and illegal repair-shifting clauses.

If She Gives 2 Months' Notice

Even if the landlord properly invokes Art. 2714 with 2 months' notice:

1. **You invoke Art. 2738 within 15 days.** You have the right to request a 1-year extension if you're current on rent (you are — bank records prove it).
2. **She can only raise rent by 10% MAX** — and must demonstrate that area rents justify the increase. No proof = no increase.
3. **If she refuses the extension, you stay.** She'd have to go to court to evict you. In that proceeding, you raise every defense in this document. Mexican court proceedings take months to years. You remain in the property throughout.
4. **She doesn't want a court fight.** Your counterclaims (repair reimbursement, unjust enrichment from cable TV, Art. 383(d) nullity, Art. 24-26 exploitation) would surface. The ownership question would be examined. Her 5-year pattern of predatory contracts would be on record.

The most likely outcome: She accepts the status quo or comes back to negotiate on your terms.

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9. THE PROMISSORY NOTES (PAGARES) PROBLEM

Why Promissory Notes Are a Dealbreaker

Clause 2 requires the tenant to sign **12 promissory notes** (pagarés) — one for each month of rent.

What are pagarés?

Promissory notes are **autonomous negotiable instruments** governed by the Mexican General Law of Negotiable Instruments and Credit Operations (Ley General de Títulos y Operaciones de Crédito). They are NOT governed by the Civil Code.

Why they're dangerous:

1. **Independent enforceability.** Each promissory note is a standalone debt obligation. Even if the lease is terminated, disputed, or declared null, the promissory notes remain enforceable as commercial instruments.

2. **Summary commercial proceedings.** Pagarés can be enforced through "juicio ejecutivo mercantil" — a fast-track commercial proceeding where the debtor's assets can be seized quickly. The tenant cannot raise most lease-related defenses in commercial proceedings.

3. **Separation from the lease.** If the landlord sues on the promissory notes, the tenant cannot easily argue "the property had defects" or "the rent was inflated" because those are Civil Code defenses in a Commercial Code proceeding.

4. **Transferability.** The landlord can **sell or endorse** the promissory notes to a third party (a debt collector, for example). That third party can then sue the tenant on the notes, and the tenant cannot raise defenses against the original landlord.

5. **12 months of exposure.** If the tenant pays rent by bank transfer (as required), the promissory notes should theoretically be returned for each month paid. But Clause 2 only provides for return of promissory notes in case of "early return of possession." There is no explicit provision for returning promissory notes as each month's rent is paid. This means the landlord could hold ALL 12 notes even after rent has been paid, and potentially enforce them.

6. **Double collection risk.** The tenant pays rent by bank transfer AND signs promissory notes. If the landlord

claims the bank transfer wasn't received (or attributes it to something else), they can enforce the promissory note for the same month — collecting twice.

The Prior Promissory Notes — STATUS: RESOLVED

Each prior year, the tenant signed 12 promissory notes as part of the annual contract. Each year, after all payments were made, the landlord returned the original pagarés to the tenant. This cycle repeated for each year of the tenancy.

This year (Year 6), the tenant did not sign the new contract — and therefore did not sign new promissory notes. There are no outstanding pagarés in the landlord's possession.

This is critically important: The promissory note vulnerability is CLOSED. The landlord has no commercial fast-track enforcement weapon. If she were to refuse to return pagarés in the future (or claim she still held prior ones), that would constitute **fraud** — presenting satisfied debt instruments for collection is a criminal offense under Mexican law.

Compared to Tacit Renewal Status Quo: - Under the current arrangement, there are NO outstanding promissory notes. - Rent is paid by bank transfer with a clear electronic record. - There is no fast-track commercial enforcement mechanism. - The landlord returned all prior pagarés after each year's payments were completed.

Recommendation: Promissory notes are an absolute dealbreaker in any new contract. Under no circumstances should the tenant sign new pagarés. The fact that prior pagarés were returned confirms the landlord acknowledged full payment — this is additional evidence of the tenant's consistent on-time payment history.

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10. STRATEGIC RECOMMENDATIONS AND TIMELINE

Primary Strategy: DO NOT SIGN — Maintain Tacit Renewal

The tenant's strongest position is the status quo. Under tacit renewal (Art. 2739): - The lease continues indefinitely at the original rent - The landlord must give 2 months' notice to terminate (Art. 2714) - All prior agreements remain in force - The landlord's repair obligations apply (Art. 2687) - No new promissory notes, no penalties, no furniture seizure - The predatory clauses from the prior contract were always null and don't carry forward

The Timeline — Step by Step

The following timeline is designed to maximize information gathering while the landlord still thinks you're the confused gringo who just needs time. The order matters — intelligence gathering BEFORE legal assertiveness.

When	Action	Tone	Purpose
March 5 (Tomorrow)	Conciliatory WhatsApp text	Warm, apologetic	Buy time; maintain friendly appearance
March 6-8	Casual request for photos of contract + pagarés	Friendly, "organizing records"	Obtain copies of all documents before she lawyers up
March 6-20	Organize all evidence	—	Bank records, repair receipts, WhatsApp exports, photos
March 13	Continue paying rent at last signed amount ($12,000)	—	Tacit renewal rent; she accepts = reinforces renewal
~March 20-25	Formal demand letter (certified mail)	Professional, legal, citing articles	Assert rights; create official record
Ongoing	Continue paying original rent by bank transfer	—	Build evidence trail; each payment reinforces position

Step 1: The Conciliatory Text (March 5)

Send from your new US number. Keep it warm, non-legal, and apologetic:

> “Hola Ella, perdón por el estrés del otro día. Llegamos muy tarde por el camión y todo fue muy rápido. Quiero revisar todo con calma. Estoy en un avión de regreso, mi SIM no funciona en Estados Unidos. Te escribo desde mi nuevo número cuando esté instalado para platicar de las cosas que mencioné y de las reparaciones. No quería crear ningún problema enfrente del notario.”

This buys you weeks and keeps her thinking you’re friendly and non-threatening. She doesn’t know you’ve read the law.

Step 2: Get the Photos (March 6-8)

BEFORE going assertive, while she still thinks you’re friendly:

> “Oye, también — busqué el contrato en el WhatsApp y no lo encuentro. Se me hace que no se envió bien. Me puedes mandar fotos del contrato y los pagarés? Así los dos tenemos nuestros registros.”

This must happen BEFORE Step 4. Once you send the demand letter, she’ll stop sharing anything.

Step 3: Organize Evidence (March 6-20)

While “settling in,” prepare your full evidence file: - Save and back up whatever she sends (contract photos, pagaré photos) - Organize bank transfer records (every month, every year, every amount) - Organize repair receipts and photos - Export all WhatsApp conversations (the chat export feature preserves timestamps) - Draft the formal demand letter - Optionally: consult a Quintana Roo civil attorney to review the demand letter

Step 4: Start Paying the Original Rent (March 13)

When the next rent payment is due, pay **$12,000** — the last signed contract amount. This is the conservative tacit renewal rate under Art. 2739 (the lease renewed at the terms of the last valid contract). The landlord’s proposed increase to $13,500 was never signed and never agreed to.

If the landlord objects, this forces HER to take action — and any action she takes strengthens your position: - Refusing rent = she can’t claim non-payment as eviction grounds - Threatening eviction = duress (Art. 193), which strengthens the coercion defense - The $9,000 argument (all contracts null under Art. 383(d)) remains available as the nuclear option if she escalates

Step 5: The Formal Demand Letter (~March 20-25)

Send by **certified mail or notarized delivery** (not WhatsApp — you need proof of receipt). This letter should:

- Assert tacit renewal under Art. 2739 at the last signed rent of $12,000
- Cite Art. 2738 (10% cap, justification required — never provided)
- Demand repairs under Art. 2687 (water heater, toilet, shower drain)
- Demand reimbursement for prior repairs made by the tenant
- Reference Art. 383(d) (language barrier — all prior contracts potentially null)
- Demand resolution of the cable TV issue (transfer, cancel, or reimburse)
- Reference the unjustified rent increases and potential overpayment
- State that the tenant will continue paying $12,000/month as the lawful tacit renewal rent
- Be professional and cite the law — do NOT call the contract “predatory” or “illegal” in the letter itself (let the articles speak for themselves)

Step 6: File PROFECO Complaint (~March 20-25, same time as demand letter)

File a formal complaint with PROFECO (Procuraduría Federal del Consumidor — Mexico’s federal consumer protection agency). This is FREE, does not require a lawyer, and creates an official government record. Alberto can file in person at the Cancún PROFECO office, or it can be filed online at gob.mx/profeco.

The PROFECO complaint should cite THREE separate violations:

1. **Bait-and-switch (publicidad engañosa / información engañosa):**
    - Landlord communicated rent of $12,500 via WhatsApp on 2/24/26
    - Contract presented at signing on 3/3/26 says $13,500
    - Her own voice note at 4:33 PM on signing day ADMITS she told Nestor $12,500 and the contract says

$13,500
    - She had 7 days to “correct” this “mistake” but waited until 27 minutes before the appointment
    - Attach: WhatsApp message screenshot (2/24/26), voice note transcript screenshot, contract page showing $13,500
2. **Illegal rent increase exceeding Art. 2738 cap (aumento ilegal de renta):**
    - Last signed rent: $12,000/month
    - Proposed rent: $13,500/month = 12.5% increase
    - Art. 2738 hard cap: 10% — and only with proof that area rents justify it (never provided)
    - Prior Year 2 increase was also illegal: $9,000 → $10,000 = 11.1%
    - Attach: WhatsApp messages showing each year’s rent amount, current lease amount
3. **Abusive/predatory contract terms (cláusulas abusivas):**
    - 10% monthly interest (120%/year) — legal rate is 12%/year (Art. 2659)
    - Deposit forfeiture + personal property seizure without court order (Clause 12)
    - Stacking penalties of $27,000 per violation (Clause 13)
    - Shifting mandatory landlord repair obligations to tenant (Clauses 5, 6, 7) — violates Art. 2687, 2698
    - Language barrier: contract entirely in Spanish for American tenant, no translation (Art. 383(d))
    - “Not the same contract” — landlord claimed contracts were identical, but 9 material differences found, ALL favoring landlord
    - Attach: contract comparison, WhatsApp evidence of language barrier

What PROFECO can do: - Initiate a **conciliation process** (free mediation with both parties) - Issue **administrative fines** against the landlord for abusive practices - Create an **official government record** of the violations (powerful evidence in civil court) - Apply pressure — landlords take PROFECO complaints seriously - If conciliation fails, PROFECO issues a formal ruling usable in court

Why file now: The PROFECO complaint runs in parallel with the demand letter. The demand letter is the private/legal track. PROFECO is the government/administrative track. Both create pressure and documentation. Together they signal: this tenant knows the law and is using every legitimate channel.

Step 7: Ongoing — Continue Paying Original Rent

Every month, transfer $12,000 to the same account. Keep records. Each payment she accepts reinforces tacit renewal at that amount. If she refuses a payment, document the attempt (screenshot the transfer, keep the rejected transaction record).

If the Landlord Escalates

Her Action	Your Response
Threatens eviction by text/call	Respond in writing citing Art. 2739, 2714. Document.
Refuses rent payment	Document the attempt. She can’t claim non-payment if she refused it.
Sends someone to the property	Do not open the door. Self-help eviction is illegal. Call police if necessary.
Hires a lawyer	Good — a lawyer will tell her she’s in a weak position. Consult your own attorney.
Files for eviction in court	You have months-to-years of legal process. Raise all defenses. Counterclaim.
Does nothing	Best outcome — status quo continues at $12,000/month with all your protections intact.

Additional Actions

- **Do not attend any more “signing appointments.”** There is no legal obligation to attend. Her strategy is to pressure you into signing at an appointment.
- **File a complaint with PROFECO** (Federal Consumer Protection Agency) if she persists in threats or coercion. PROFECO can mediate and has authority to sanction abusive practices.

- **Document everything.** Every communication, every threat, every refused repair — in writing with dates.

The Settlement Strategy — What We're Actually Going For

The goal is NOT to go to war. The goal is to use the overwhelming legal position to negotiate a practical settlement where both parties can continue the relationship. She keeps her tenant and income; we get fair treatment, repairs, and reimbursement.

Why she'll settle (the pressure calculus):

Threat to Landlord	Cost to Her
PROFECO fines for abusive practices	$10,000-50,000+ MXN
PROFECO fines for bait-and-switch	Additional fines
Civil court judgment for rent overpayment	$28,740-72,000 MXN
Repair reimbursement claims (pump, roof, wall, bed, HVAC bolt)	$10,000-20,000 MXN
Excess electricity costs from aging/inefficient AC units she refused to replace	$5,000-15,000+ MXN
Her own legal fees to defend	$15,000-30,000+ MXN
Lost rent increase ($1,500/month she wanted)	$18,000/year
Government record affecting her other properties	Unquantifiable
Total exposure	**$80,000-190,000+ MXN**

Cost to Her of settling	Amount
Fix the AC (she already promised twice)	~$8,000-15,000 MXN
Accept $12,000/month instead of $13,500	$1,500/month less
Credit repairs against rent (2-3 months)	$24,000-36,000 offset
Fix other maintenance issues	Varies
Total cost of settling	**Much less than fighting**

What we demand in the settlement:

Demand	How It's Delivered	Legal Basis
Rent stays at $12,000/month	Tacit renewal continues	Art. 2739, Art. 2738
Repair reimbursement as rent credits	Apply $28,740-40,000 as credit against future rent = 2-3 months free	Art. 2687 (she owed these repairs)
AC replaced with quality units	She already promised TWICE (6/1/24 and 2/28/26). The replacement unit she finally delivered has the LOWEST possible energy efficiency rating, sits uninstalled in a box, and her technician hasn't come to install it. Meanwhile, the old units drive up CFE electricity bills (went from ~$200-$460 in 2022 to $1,400-$2,000+ in 2024-2025) — the tenant is paying for her cheapness.	Art. 2687, WhatsApp evidence, CFE bills
All other repairs completed	Water heater, toilet, shower drain, whatever else	Art. 2687
Cable TV resolved	Transfer to tenant's name, cancel, or stop charging	Unjust enrichment
Deposit fully refundable	Return in full when tenant eventually leaves	Art. 2704
No new contract required	Tacit renewal continues by law	Art. 2739
No promissory notes	Not required under tacit renewal	—
Written	Formalizes existing verbal agreement	Prevents future disputes

acknowledgment of dogs		
Drop the whole $13,500 idea	Illegal increase, bait-and-switch, not signed	Art. 2738

What we DON'T demand (keeps it reasonable): - We don't demand cash payment (she'd refuse and dig in) - We don't demand rent reduction below $12,000 (even though the $9,000 nuclear argument exists) - We don't pursue the full $72,000 overpayment claim (keep it as leverage, not a demand) - We don't threaten to report to immigration/tax authorities (keep it civil)

What she should consider (the unspoken leverage): - This tenant sealed her roof for years, bolted down the HVAC before a hurricane, fixed wall damage, repaired plumbing, maintained the garden, and paid rent early every month (she even had to apologize in November 2024 after falsely accusing him of not paying — "I'm really sorry I found it") - If she pushes out a tenant who actively PROTECTS her property and replaces him with an unknown — or worse, the house sits empty — who seals the roof? Who bolts down the AC before the next hurricane? Who fixes the mold? Who waters the garden? - A vacant house in tropical Quintana Roo deteriorates FAST — mold, humidity, pests, roof leaks, hurricane damage with nobody to prepare - The cost of vacancy + finding a new tenant + property deterioration far exceeds the cost of settling with a tenant who has been treating her property better than she has

The message this sends: "I know my rights. I have the evidence. I have the law. But I'm not trying to destroy you — I just want fair treatment. Fix the stuff you should have fixed, credit me for the stuff I fixed for you, and let's continue at the legal rent. Or I file with PROFECO and we both spend the next year in hearings."

The Nuclear Option (Back Pocket — Do Not Deploy Yet)

If the slow escalation isn't working or circumstances change, there's a more direct play available: **The Landlord Report.**

Instead of the gradual approach, send her ONE comprehensive document — a professional landlord-to-landlord report — that lays out: - Everything you know (the code, the contract comparison, the evidence) - Everything she did wrong (bait-and-switch, illegal increases, predatory terms, maintenance neglect) - The proof (WhatsApp screenshots, voice note transcript, contract comparison, bank records) - Your demands (rent credits, repairs, AC, cable TV equipment pickup, continuation at $12,000) - The consequence: "If we can't resolve this between landlords, this same document goes to my attorney and PROFECO"

Attach a copy of the relevant Civil Code articles. She knows you're a landlord (WhatsApp 4/8/22: "I learned a lot renting from you that I used for my own tenant"). This isn't a confused foreigner — this is a peer who caught her. Landlord to landlord.

Why this works: It collapses the slow escalation into one overwhelming move. No games, no pretending. Just: "I know. Here's the proof. Here's the deal. Take it or I file."

Why we're NOT doing this yet: The slow approach gathers more intelligence first (photos of contract/pagarés), keeps her comfortable, and lets the demand letter + PROFECO land as separate escalating shocks. The nuclear option is held in reserve if she doesn't respond to the graduated pressure — or if circumstances require a faster resolution.

Escalation Ladder (Primary Strategy — Gradual Pressure)

If she doesn't settle at each stage, escalate to the next:

Stage	Action	Pressure Level
1. Conciliatory text (March 5)	Buy time, gather intelligence	Low — she thinks everything's fine
2. Get photos (March 6-8)	Obtain contract/pagaré copies	Low — "just organizing records"
3. Pay $12,000 rent	Assert tacit renewal rate	Medium — she notices the amount

(March 13)		
4. Demand letter (March 20-25)	Formal legal notice citing articles	High — she knows you have a lawyer or legal knowledge
5. PROFECO complaint (same time)	Government investigation	High — official record, potential fines
6. Settlement offer (after she receives both)	Rent credits + repairs + peace	Resolution — give her an off-ramp
7. Civil court (only if all else fails)	Lawsuit for overpayment + damages	Nuclear — years of litigation

The likely outcome: She settles at Stage 6. Small-time landlords using government template contracts don't have the resources or stomach for PROFECO investigations and civil court. When she sees the demand letter citing specific articles, the PROFECO complaint with her own voice note attached, and a reasonable settlement offer that lets her save face — she'll take the deal.

If She Somehow Refuses Everything

If circumstances require entering into a NEW contract (which we don't want, but just in case), the **minimum non-negotiable requirements** are:

Requirement	Reason
Full English translation of the contract	Art. 383(d) compliance
Independent interpreter at signing	Informed consent
NO promissory notes (pagarés)	Prevents commercial fast-track enforcement
Rent at $12,000 or Art. 2738 maximum (10% with justification)	Legal limit
Truthful property condition report as annex	Prevents constructive acceptance trap
Explicit authorization for existing dogs (including service dog)	Preserves verbal agreement
Landlord repair obligations per Art. 2687 expressly stated	Prevents illegal repair-shifting
Late interest at legal rate (12% annual) or reasonable rate	Prevents usury
No furniture seizure, no penalty stacking, no prior-agreement destruction	Removes predatory clauses
Binding repair schedule for current defects	Holds landlord accountable
Cable TV resolution	Eliminates third-party billing trap
Copy of contract provided to tenant at signing	Basic right
Rent credit for tenant's prior repair expenses	Reimbursement

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11. SIDE-BY-SIDE: CURRENT STATUS VS. NEW CONTRACT

Category	Current Status (Tacit Renewal)	New Proposed Contract	Who Benefits
Lease term	Indefinite (Art. 2739)	Fixed 1 year, auto-vacancy	Landlord
Monthly rent	$12,000 (last signed contract)	$13,500 (bait-and-switch — +12.5%)	Landlord
Promissory notes	None outstanding (all prior returned)	12 new signed pagarés	Landlord
Late interest	Legal rate: 12%/year	120%/year (usurious)	Landlord
Security deposit	Original deposit held	Same amount, worse conditions	Landlord
Repairs (landlord's)	Mandatory (Art. 2687)	Shifted to tenant	Landlord
Property condition	Known defects = active claims	"Perfect working condition" fiction	Landlord

Prior agreements	All preserved	ALL destroyed (Clause 15)	Landlord
Dogs/pets	Verbal agreement + acquiescence	No pets; $27,000 penalty	Landlord
Termination notice	2 months required (Art. 2714)	Automatic at expiration	Landlord
Early termination	Limited grounds (Art. 2741)	ANY violation — catch-all	Landlord
Penalties	None	$27,000 per violation, stacking	Landlord
Death provisions	Lease continues with heirs (Art. 2683)	30-day vacancy; property seizure	Landlord
Early departure	2 months' notice, deposit returned	Deposit forfeited + furniture seized	Landlord
Renewal rights	Automatic (Art. 2739)	Explicitly excluded	Landlord
Cable TV	Unjust enrichment counterclaim	Formalized as tenant obligation	Landlord
Language	Defense intact (Art. 383(d))	Still all Spanish, still no translation	Neither
5-year preference rights	Approaching/reached 5-year threshold (Art. 2708)	Contract resets the clock	Landlord
Adhesion interpretation	Art. 175 — all ambiguities favor tenant	Same — but new contract has fewer ambiguities (tightened against tenant)	Landlord

Score: Landlord benefits in 18 of 19 categories. Tenant benefits in 0.

This contract is not a negotiation — it is a unilateral transfer of all rights from tenant to landlord.

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12. FEDERAL & STATE CODE RESEARCH: VERIFIED LEGAL PROVISIONS

Background: Debunking the "2025 Rental Reform" Myth

A widely-circulated blog article (Mexico Custom Homes, Feb 2025) claimed that Mexico enacted nationwide rental law reforms in 2025 including inflation-linked rent caps, digital lease registries, and enhanced tenant protections. **This is false.** Research confirms:

- The reforms described are **CDMX (Mexico City) ONLY** — enacted by the local legislature, not the federal Congress
- The Federal Civil Code's last reform (DOF 14-11-2025, "Reform 60") is about **procedural harmonization** with the Código Nacional de Procedimientos Civiles y Familiares — NOT about rental protections
- The Quintana Roo Civil Code's last reform (POE 31-05-2023) reformed **disability/incapacity articles** — NO rental articles were changed in 2023
- **Federal Art. 13(III) confirms: rental contracts are governed by the law of the property's location** — i.e., Quintana Roo state law, not federal or CDMX law

However, the existing provisions in both the QR Civil Code and the Federal Civil Code are already very strong for this tenant. The research revealed several powerful provisions not previously cited in this analysis.

New Supporting Provisions from QR Civil Code

Article	What It Says	How It Helps
Art. 21	When rights conflict, the dispute is resolved in favor of "the party that is culturally, economically, or socially the	Nestor is a foreigner who doesn't speak Spanish, signed contracts he couldn't read — he is the culturally/linguistically

	weakest”	weaker party by definition
Art. 175	In adhesion contracts (where terms were not freely negotiated), **ambiguities are interpreted against the drafter** and in favor of the other party	Ella drafted the lease entirely in Spanish with no translation. Every ambiguous clause is interpreted against her
Art. 283	Parties may establish any clauses NOT contrary to morals or public order	Public order provisions (Art. 2687 repairs, Art. 2698 force majeure relief, Art. 2709 habitability) override any contract clause
Art. 291	A judge may **proportionally reduce manifestly excessive penalties**	The $27,000 stacking penalties (2x rent per violation) are judicially reducible — a judge will not enforce them at face value
Art. 378-381	**Excessive onerousness (imprevisión):** When a bilateral contract becomes excessively onerous due to extraordinary unforeseeable events, the burdened party can demand rescission or equitable modification	If the 50% rent increase over 5 years (far exceeding inflation) made the contract excessively onerous, the tenant can demand equitable reduction
Art. 2659	Legal interest rate is **12% per annum**. When interest is disproportionately above bank rates and there is reason to believe the lender abused the borrower’s hardship, inexperience, or ignorance, **the judge may retroactively reduce to the legal rate**	The proposed 10%/month (120%/year) interest is 10x the legal rate. The prior contract’s 6%/month (72%/year) was 6x the legal rate. Both are retroactively reducible
Art. 2661	**Compound interest (anatocism) is ABSOLUTELY PROHIBITED**, under penalty of nullity	If any interest calculation compounds unpaid interest, it is automatically null
Art. 2688	If the landlord fails to make necessary repairs: (1) tenant can demand rescission, OR (2) **tenant can petition the court to compel repairs — and if the landlord fails the court deadline, the judge can authorize the tenant to make repairs and CHARGE THEM AGAINST RENT**	This is a powerful self-help remedy: court-authorized deduction of repair costs directly from future rent payments
Art. 2693	Landlord must return any balance (including deposit) **IMMEDIATELY** upon lease termination. If landlord wants to withhold, they must **deposit the amount with the court** — they cannot simply keep it	Ella cannot just forfeit the deposit. She must return it immediately or judicially deposit it with stated reasons
Art. 2698	Force majeure rent relief (total suspension for total impediment; proportional reduction for partial impediment) is **explicitly NON-WAIVABLE**: “no puede renunciarse”	The 3+ months without AC in tropical Cancún entitles the tenant to rent reduction, and this right exists regardless of what the contract says
Art. 2708	In leases lasting **more than 5 years** where the tenant made improvements, the tenant has: (1) a **preference right for lease renewal**, and (2) a **right of first refusal if the landlord sells**	Nestor has been there since 2021 — reaching 5 years in March 2026. He has made extensive improvements (roof, plumbing, water pump, etc.). This triggers BOTH rights
Art. 2709	Urban property must meet hygiene/health code conditions. Landlord liable for damages for non-compliance.	Even if the contract said tenant waives habitability claims, that waiver is void.

	The right to collect this indemnification CANNOT be waived in advance	The broken water heater, toilet, shower drain = ongoing habitability violations

New Supporting Provisions from Federal Civil Code

While QR state law governs the lease (Art. 13(III) CCF), the Federal Civil Code provides supplementary principles and parallel protections:

Article	What It Says	How It Helps
Art. 17	Exploitation of "extreme ignorance, notorious inexperience, or extreme misery" for disproportionate profit → nullity or equitable reduction + damages. 1-year limitation	Parallel to QR Art. 24-26 but adds the damage remedy explicitly. Nestor's language barrier = "notorious inexperience" with Mexican law
Art. 1795	Contract may be invalidated for: (II) vices of consent; (III) illicit object/motive; (IV) consent not in required form	Multiple grounds: consent vitiated by language barrier (II); illicit motive in predatory clauses (III); not in proper form for the tenant (IV)
Art. 1812-1815	Consent is invalid if given by error, extracted by violence, or obtained by dolo (fraud/artifice). "Dolo" includes any suggestion or artifice to induce or maintain error, AND bad faith concealment of a known error	If Ella knew Nestor couldn't read Spanish and presented contracts without translation = dolo (bad faith concealment of his error about the terms)
Art. 2406 / 2448-F	Written lease contract failures are **attributed to the LANDLORD**	The failure to provide a contract in a language the tenant understands is legally the landlord's fault, not the tenant's
Art. 2412	Landlord must: (I) deliver property in hygienic/safe condition; (II) make ALL necessary repairs; (III) not impede use; (IV) guarantee peaceful enjoyment; (V) be liable for hidden defects	Parallel to QR Art. 2687 — confirms these are universal obligations in Mexican law
Art. 2416	If landlord fails repairs, tenant may rescind OR compel via **expedited court procedure** (reformed Nov 14, 2025 to reference faster procedural code)	The 2025 reform made judicial enforcement of repair obligations FASTER — the only 2025 change relevant to this case
Art. 2422	Landlord must return balance/deposit **immediately** at lease end; if withholding, must **deposit judicially**	Confirms QR Art. 2693 — landlord cannot simply pocket the deposit
Art. 2431-2433	Force majeure suspends rent (total impediment) or allows proportional reduction (partial). **Art. 2433: THESE PROVISIONS CANNOT BE WAIVED**	Federal code explicitly says these rights are irrenunciable — matches QR Art. 2698
Art. 2448	Residential tenant protections in Arts. 2448-A through 2448-H are of **PUBLIC ORDER AND SOCIAL INTEREST** and are **IRRENUNCIABLE**. "Any stipulation to the contrary shall be deemed as not written"	The strongest possible legal language — predatory clauses don't just fail, they are "deemed as not written"
Art. 2487	Federal tacit renewal: if tenant stays after expiration without landlord opposition, lease renews for an **indefinite term**	Parallel to QR Art. 2739 — confirms tacit renewal is a fundamental Mexican legal principle
	Landlord's grounds for rescission are **EXHAUSTIVE**: (I) non-payment; (II)	The catch-all "any violation" clause in the

Art. 2489	misuse; (III) unauthorized subletting; (IV) serious damage; (V) unauthorized alterations	proposed contract (Clause 9(g)) is illegal — the law limits rescission to these 5 specific grounds
Art. 2490	Tenant may demand rescission for: (I) landlord's failure to maintain; (II) total/partial loss of use; (III) hidden defects	The tenant has at least TWO active grounds to rescind: maintenance failures AND partial loss of use (AC)

The 5-Year Threshold: Art. 2708 (NEW — Not Previously Analyzed)

This is a significant new discovery. **Art. 2708 of the QR Civil Code** provides that when a lease has lasted more than 5 years AND the tenant has made improvements:

1. **Preference right for renewal:** The tenant has priority to renew the lease under equal conditions
2. **Right of first refusal on sale (Art. 1999):** If the landlord wants to sell the property, the tenant must be offered the opportunity to purchase it first, under the same terms as any third-party buyer

Application to this case: - Tenancy began March 2021. As of March 2026 = **exactly 5 years** - The tenant has made documented improvements: roof repair, plumbing repairs, water pump, faucets, floor repair, bed frame repair - These improvements were substantial (the roof repair alone was a multi-day project) - **This means the tenant is approaching or has reached the 5-year threshold that triggers these additional protections**

If the landlord tries to terminate the lease to sell the property, the tenant has a legal right of first refusal. If the landlord tries to replace the tenant with someone else, the tenant has priority for renewal. These rights exist by operation of law — they don't depend on the contract.

Summary: Verified vs. Debunked Claims

Claimed Reform	Status	Reality
Inflation-linked rent caps (nationwide)	**FALSE**	CDMX only. QR has Art. 2738 (10% cap with proof) — unchanged
Digital lease registration requirement	**FALSE**	CDMX only. No such requirement in QR
Enhanced tenant protections (2025)	**FALSE**	No QR rental articles reformed since 2021. Federal reform (Nov 2025) only updated Art. 2416's procedural reference
Expedited judicial enforcement of repairs	**TRUE (Federal only)**	Art. 2416 CCF reformed Nov 2025 to reference faster procedures under new Código Nacional de Procedimientos Civiles y Familiares
Existing QR protections are strong	**TRUE**	Art. 2687 (repairs), 2698 (non-waivable rent relief), 2708 (5-year preference), 2709 (non-waivable habitability), 2738-2739 (rent cap + tacit renewal), 383(d) (language/consent), 24-28 (lesión) — all already in force

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CONCLUSION

This proposed lease contract is a **predatory instrument** that systematically strips the tenant of every legal

protection afforded by the Quintana Roo Civil Code. It features:

- **Usurious interest** (10x the legal rate)
- **Independently enforceable debt instruments** (promissory notes)
- **Constructive acceptance** of a property with known defects
- **Illegal self-help** provisions (furniture seizure, property entry on death)
- **Penalties that stack to absurd levels** ($27,000+ per violation)
- **A nuclear clause** that destroys all prior agreements and protections
- **Direct contradictions** to mandatory Civil Code provisions (Art. 2683, 2687, 2698, 2709, 2714, 2738, 2739)
- **A catch-all eviction clause** (Clause 9(g)) that violates Art. 2741 (QR) and Federal Art. 2489 — landlord rescission grounds are EXHAUSTIVE and limited to 3-5 specific causes
- **A cable TV trap** that creates an eviction trigger from a third party's service contract

The predatory clauses in the prior contract — if the same — were **never legally valid**. Mandatory law applied from day one, regardless of what the tenant signed. The tenant's compliance with illegal clauses does not create retroactive validity. Those clauses were null from inception, and the tenant has counterclaims for every repair performed under the landlord's legal obligation.

The rent has been raised **50% above the original amount** over 5 years — far exceeding both cumulative inflation (~30.7%) and the Art. 2738 legal cap (10% per year with justification). The tenant has potentially overpaid between **$28,740 and $72,000 MXN**. All prior promissory notes have been returned — there are no outstanding pagarés.

The tenant's current position under tacit renewal is **immeasurably stronger** than anything this contract offers. The landlord's apparent weapons — late payments, penalties, dogs, utilities — are all blanks. There are no live vulnerabilities.

The correct strategic decision is clear:

Do not sign. Maintain tacit renewal. Pay $12,000/month (last signed amount). Send the demand letter. File with PROFECO. Offer a reasonable settlement: rent credits for repairs + AC replacement + continuation at $12,000. She settles, or she fights a battle she can't win.

The tenant who sealed her roof, bolted down her HVAC before a hurricane, fixed her wall damage, repaired her plumbing, planted flowers in her garden, and paid rent on time for 4 years is not the enemy. He is the best tenant she has ever had. She should be grateful — not predatory. If she won't see that on her own, the demand letter, PROFECO complaint, and her own voice note admitting the bait-and-switch will help her understand.

Analysis prepared March 4, 2026. Cross-referenced against the Civil Code for the State of Quintana Roo (Last Reform POE 31-05-2023), the Código Civil Federal (Last Reform DOF 14-11-2025), and the Tenant Rights Defense Report. Federal code research confirmed no new nationwide rental protections in 2024-2025; CDMX-only reforms do not apply to Quintana Roo.